



File No.: EXP202402037

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On December 18, 2023, a complaint was filed with entry registration number REGAGE23e00085587042 before the Spanish Agency for Data Protection against MEDITERRÁNEO SERVICIOS DE GESTIÓN INTEGRAL, S.A.U. with NIF A03415346 (hereinafter, MSGI). The reasons for the complaint are as follows:

The complainant states that on February 16, 2023, a vote was held in the owners' meeting regarding the change of property management, with the complained party being elected. On March 31, 2023, the complainant exchanged several emails with the complained party, requesting a copy of the minutes of the meeting held on February 16, 2023, a copy of the service contract, data related to the current account of the Community of Owners, and the status of their account, which should show a surplus. On May 6, 2023, they received a forwarded email regarding the Community of Owners, carried out by a third party (A.A.A. <***EMAIL.1>). On May 10, 2023, they contacted the complained party to inform them of their phone number and email address in order to verify their contact details and correct them, although they do not specify the means used for this contact nor do they provide any proof of it. They add that on June 19, 2023, and July 4, 2023, they received, via forwarding, from the address A.A.A. <***EMAIL.1>, two other emails related to the Community of Owners. On July 5, 2023, they responded to a customer satisfaction survey from MSGI, expressing their dissatisfaction, among other things, regarding the sending of their emails to another person. On July 10, 2023, they submitted a complaint form at the Consumer Office of San Juan de Alicante, requesting, among other things, that their data be corrected so that their emails would not be sent to another person.

The complaint document is accompanied by:

- Thread of emails exchanged on March 31, 2023, between the complainant and the complained party:
 - o Screenshot of an email dated March 31, 2023, at 11:55 AM, sent by the complainant to MSGI. In the body of the message, the complainant introduces themselves as a neighbor of the Community of Owners and requests that the minutes of the meeting of the neighbors held on February 16, 2023, and other documents be sent to them.
 - o Screenshot of an email dated March 31, 2023, at 12:50 PM, sent by MSGI to the complainant. In the body of the email, the recipient is informed, "We collected the documentation from C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

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Last week, all the information was forwarded to the integration and accounting department, so that the community can be registered." Additionally, a response is provided to the other issues raised by the claimant in their previous email.

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Screenshot of an email dated 31/03/2023 at 13:18, sent by the claimant to MSGI regarding the change of the bank account of the Community of Owners.

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Screenshot of an email dated 06/05/2023, in which A.A.A. <***EMAIL.1> is listed as the sender, and the content is a forwarding of an email sent from the administrator's email account (***EMAIL.2) to the account A.A.A. <***EMAIL.1>, informing that information related to the Community of Owners is being sent as an attachment. A copy of the attached document is not provided.

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Screenshot of two emails dated 19/06/2023 and 04/07/2023, in which A.A.A. <***EMAIL.1> is listed as the sender, and the content of both is a forwarding of an email sent from the administrator's email

account (***EMAIL.3) to the account A.A.A. <***EMAIL.1> with the subject: "Quality of Service Study," and the content observed is a cover page that does not contain personal data.

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Photograph of the complaint submitted by the claimant at the Consumer Office of San Juan Alicante on 10/07/2023. In section 2 "Facts subject to the complaint," the facts related to an incident in the downspout of the Community of Owners are recorded. In section 3 "Other facts subject to this complaint," other issues related to the management of MSGI as the Administrator of the property are detailed, including the one regarding the update of the contact details of the claimant, which states: "I have communicated my data, phone number, and email in the initial form they provided me, I repeated them in the emails with B.B.B., and they are still sending emails to another person." The complaint is accompanied by photographs of the indicated incident and screenshots that capture the observations made by the claimant in their response to the MSGI quality of service survey, including the one regarding the update of their contact details.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to MSGI for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not acknowledged by the responsible party within the availability period; it was reiterated by the same means, and notification was made on 01/03/2024.

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THIRD: On March 18, 2024, in accordance with Article 65 of the LOPDGDD, the complaint submitted was accepted for processing.

FOURTH: On March 28, 2024, a document was received by this Agency from the party being complained against, indicating that a response to the information request was attached; however, this response document was not sent.

FIFTH: The General Subdirector of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

– On June 26, 2024, information and documentation were requested from the party being complained against by the Data Inspection. On July 3, 2024, a response document was received by this Agency, in which the following is stated:

o Regarding the change of Property Administrator, on February 16, 2023, MSGI becomes the new Data Processor:

☐ A record of the Community of Property Owners' meeting is provided, in which the change of Administrator is approved.

☐ A copy of the data processor contract signed on May 1, 2023, is provided, which includes clauses related to the purpose, the affected information, the duration, the return of the data, subcontracting, obligations of the processor and the controller, minimum security measures of the processor, and confidentiality.

☐ From the date of February 16, 2023, of the change of Property Administrator, the previous Property Administrator is requested to provide the documentation for the management of ***ADDRESS.1.

☐ The documentation is provided by the previous Property Administrator in mid-April 2023, and they provide the list of owners, a copy of which is submitted with the identifying data concealed, except for the data related to the complainant, where the communication emails appear: ***EMAIL.1 and

***EMAIL.4.

o Regarding the email communications to a third person and that this person has forwarded to the complainant, they indicate that the third person is A.A.A. (***EMAIL.1), who appears in the information transfer sheet from the previous Property Administrator to MSGI as the main communication email. A copy of the list of owners of the property ***ADDRESS.1 is provided, in which two individuals "C.C.C." and "A.A.A." are listed as owners of the apartment ***APARTMENT.1. It is noted in the email field: "***EMAIL.1/***EMAIL.4". The representative of the party being complained against states that the first email address is the main communication email with the owner and that all communications regarding the delivery of minutes are carried out by MSGI via postal mail/owner's mailbox and to the main contact email being: ***EMAIL.1.

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o MSGI in the emails of 31/03/2023 addressed the request for information from the claimant as the email ***EMAIL.4 was verified by the information received as one of the owners of ***DIRECCIÓN.1, and since there was no request in these communication threads to modify the email data for receiving communications, such as the cancellation of the contact data of the email ***EMAIL.1, MSGI continued sending emails to the main email ***EMAIL.1.

o Regarding the claimant's statement that in May 2023 they contacted the MSGI office and informed D.D.D. to change the phone number and email, it is stated that the management system was reviewed for the annotations of calls from community members and it does not appear, and that D.D.D. does not recall this specific call after the time that has passed.

The claimant does not provide documentation to substantiate their claim that on 10/5/2023 they informed the responding party of their contact phone number and email address.

o On the part of MSGI, they state that an email was sent on 03/05/2023 with the Minutes of the General Meeting and presentation of MSGI accompanied by a data update form, and once the email was reviewed, they affirm that it was not received, therefore they understand that the data MSGI had remains unchanged.

o In July 2023, the claimant responded to a survey from the Quality department of MSGI where they expressed dissatisfaction with the emails sent to ***EMAIL.1 and the contact data. From this date, communications were sent to their email ***EMAIL.4.

o Regarding the decision made concerning the claim, they state that MSGI will review the data update procedure for owners in cases of change of property administrator.

o Regarding the measures adopted to prevent similar incidents, implementation dates, and controls carried out to verify their effectiveness, they state that the data update procedure for owners in cases of change of property administrator will be reviewed, and a communication will be sent to all MSGI employees and the office managers about the importance of attending to data protection rights. All of this will be developed in the months of April, May, and June.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since MSGI carries out, among other processes, the collection, registration, organization, storage, modification, consultation, and use of personal data of individuals, such as names, surnames, postal addresses, phone numbers, email addresses, and bank details of the owners of the Community ***DIRECCIÓN.1, among others.

The responding party carries out this activity in its capacity as a data processor, as it processes this personal data on behalf of the Community of Owners ***DIRECCIÓN.1, which is responsible for this processing in question, all in accordance with the aforementioned Article 4.8 of the GDPR.

In the case of communities of owners, the legitimacy for the processing of personal data of the community members is based on the fulfillment of a legal obligation established in Law 49/1960, of July 21, on horizontal property (LPH).

According to the provisions of Article 28.3 of the GDPR, the relationship between the community of owners – responsible – and the administrator – data processor – shall be governed by a contract or legal act with the minimum content established by that provision.

This data processing agreement was signed by both parties on 01/05/2023 and is provided by the responding party, on 03/07/2024 with entry registration number REGAGE24e00049757032, along with the written response to the information request from this Agency, as Document No. 2.

III

Legal Assessment of the Claimed Facts

Article 5 "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

d) accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate are erased or rectified without delay ('accuracy');"

For its part, Article 4 of the LOPDGDD provides:

"1. In accordance with Article 5.1.d) of Regulation (EU) 2016/679, the data shall be accurate and, where necessary, kept up to date.

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2. For the purposes set forth in Article 5.1.d) of Regulation (EU) 2016/679, the data controller shall not be held liable, provided that it has taken all reasonable measures to ensure the prompt deletion or rectification of the inaccuracy of personal data, with respect to the purposes for which they are processed, when the inaccurate data:

a) Were obtained by the controller directly from the data subject.

b) Were obtained by the controller from a mediator or intermediary in cases where the applicable regulations in the sector to which the data controller belongs established the possibility of intervention by a mediator or intermediary who collects the data of the affected individuals in their own name for transmission to the controller. The mediator or intermediary shall assume the responsibilities that may arise in the event of communication to the controller of data that do not correspond to those provided by the affected individual.

c) Were processed by the controller after having been received from another controller by virtue of the exercise by the affected individual of the right to data portability in accordance with Article 20 of Regulation (EU) 2016/679 and the provisions of this organic law.

d) Were obtained from a public register by the controller.

These provisions enshrine the principle of "accuracy," which imposes on the data controller the obligation to verify the accuracy of the data of the data subject through the implementation of appropriate measures and indicates the circumstances in which, in their case, the controller receiving the personal data shall not be held liable for their inaccuracy.

In this case, the complaint originated due to the notification by MSGI, in its capacity as property administrator, of communications related to a Community of Property Owners to a third party different from the interested party (the complainant). This is due to the inaccuracy of the contact data provided by the previous property administrator to MSGI. The information transfer sheet from the previous property administrator indicated, as the main contact email, the email address of that third party and,

as secondary, the email address of the complainant.

It is also worth noting that this third party was listed in the records of the Community of Property Owners as the owner of the same property as the complainant or, at least, linked to it. The email addresses of both the complainant and this third party were associated with the same property, with the circumstance that the address of the third party was marked as the main contact email.

On the other hand, according to the documentation in the file, it is not evidenced that the responding entity was aware of the inaccuracy of the personal data of the complainant before the latter sent their response to the MSGI service quality questionnaire.

The responding party sent an email on 03/05/2023 with the Minutes of the General Meeting and presentation of MSGI accompanied by a data update form. Without

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embargo, once the email was reviewed, they confirmed that they had not received any updates, so they continued using the data they had. Subsequently, in July 2023, they received a survey from the Quality department of MSGI completed by the claimant, in which their dissatisfaction was expressed regarding the sending of communications concerning the community of property owners

***ADDRESS.1 to an email address that is not theirs, and the correct contact details were provided.

Once the error was noted, from this date forward, communications were sent to the email of the claimant (***EMAIL.4) as evidenced in documents no. 5, 6, and 7 provided by MSGI in their response to the information request from this Agency with entry registration number REGAGE24e00049757032. These are three emails dated 19/09/2023, 16/11/2023, and 06/03/2024, sent from the email account of the property administrator (***EMAIL.2) to the account of the Community of Property Owners of the claimant regarding matters concerning the Community. In the list of owners, the contact details of the claimant have already been updated.

IV

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, exercising the investigative and corrective powers it holds.

Thus, since the reported facts have not been considered contrary to data protection regulations, in accordance with the aforementioned, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to MEDITERRÁNEO SERVICIOS DE GESTIÓN INTEGRAL, S.A.U. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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